

[6 EDW. 7.]

Great North of Scotland Railway [Ch. xxvii.]
Order Confirmation Act, 1906.



CHAPTER xxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Great North of Scotland Railway. A.D. 1906.

[22nd June 1906.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Great North of Scotland Railway Order Confirmation Act 1906. Short title.

A.D. 1906.

S C H E D U L E.

GREAT NORTH OF SCOTLAND RAILWAY.

Provisional Order to confer further powers upon the Great North of Scotland Railway Company.

WHEREAS the Great North of Scotland Railway Company (in this Order called "the Company") were incorporated by the Great North of Scotland Railway Act 1846 and the powers of that Act were from time to time extended by other Acts which Acts were consolidated and amended by the Great North of Scotland Railway Consolidation Act 1859 and that Act has been amended and extended by other Acts passed since that date:

And whereas it is expedient that the Company should be empowered to provide work and use omnibuses coaches cars and other road vehicles and that the powers of this Order in relation thereto should be conferred upon the Company:

And whereas the Company require lands for the purposes of this Order and for the general purposes of their undertaking and it is expedient that the Company should be authorised to acquire by agreement and to hold further lands:

And whereas by the Great North of Scotland Railway (Consolidation and Conversion of Stocks) Act 1882 all the then existing stocks and shares of the Company were consolidated and rearranged the various classes thereof being designated by the names in that Act stated:

And whereas by the Great North of Scotland Railway Act 1897 the Company were authorised at any time within five years after the passing of the said Act pursuant to a resolution of an extraordinary general meeting of the Company to create ordinary stock of two classes to be called respectively "Great North of Scotland Railway Preferred Converted Ordinary Stock" and "Great North of Scotland Railway Deferred Converted Ordinary Stock" of equal nominal amount and to issue the same in accordance with the provisions of the said Act in substitution for the then existing ordinary stock of the Company and it was provided that the preferred ordinary stock and deferred ordinary stock should be issued in substitution for

corresponding amounts of the said ordinary stock and by way of duplication thereof and provisions were by the said Act made for the payment of a fixed maximum dividend at the rate of three per centum per annum on the preferred ordinary stock in priority to the payment of dividends upon the deferred ordinary stock of the Company : A.D. 1906.

And whereas the whole of the Company's ordinary stock has been converted into preferred converted ordinary stock and deferred converted ordinary stock :

And whereas doubts have arisen as to whether the payment of dividend by the Company upon the preferred converted ordinary stock is a sufficient compliance with the provisions of the Trusts (Scotland) Amendment Act 1884 and the Trustee Act 1893 to enable trustees and persons in a fiduciary capacity to invest moneys held by them in their capacity as trustees in certain stocks of the Company and it is expedient that such doubts should be removed :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may for all purposes be cited as the Great North of Scotland Railway Order 1906. Short title.

2. The Lands Clauses Acts (except the provisions thereof relating to the acquisition of land otherwise than by agreement and except where expressly varied by or inconsistent with this Order) are incorporated with and form part of this Order. Incorporation of general Acts.

3. The Company may provide own work and use in connection with or in extension of their railway system or otherwise in any district to which their said system affords access or in which they may find it expedient to afford improved means of communication omnibuses coaches cars and other road vehicles to be drawn or moved by animal, electrical or any mechanical power and therein convey persons luggage parcels animals and goods whether to and from any of their stations or hotels or otherwise and may make and recover such charges in respect of such conveyance as the Company may from time to time appoint and Power to run omnibuses.

A.D. 1906. — the Company may enter into contracts or agreements with any company or person for the supply or working of any such omnibuses coaches cars and other road vehicles :

Provided that any omnibuses coaches cars or other road vehicles drawn or moved by electrical power shall be so equipped worked and used as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

Conveyance
of mails by
road vehicles.

4. With respect to the conveyance of mails by omnibuses coaches cars and other road vehicles the following provisions shall apply (that is to say) :—

- (1) The Company shall convey by any omnibus coach car or other road vehicle provided worked or used on a regular or periodical service in connection with or in extension of their railway system and habitually moved by mechanical power all such mails (with the officers of the Post Office in charge thereof) as may be tendered by the Postmaster-General for conveyance by such vehicle and shall receive and deliver such mails from or to any Post Office or officer of the Post Office on the route of such vehicle :

Provided that the conveyance of mails by every such vehicle shall be subject to the following rules :—

(a) If the vehicle is intended to convey passengers only without luggage the Company shall not be bound to convey Post Office parcels :

(b) If the vehicle is intended to convey passengers and their luggage but no goods or parcels the Company shall not be bound to convey Post Office parcels which in the aggregate exceed the limits of weight or size from time to time prescribed by the Company for the luggage of an ordinary passenger :

(c) If the vehicle is intended to convey passengers and their luggage and parcels but not goods the Company shall not be bound to convey Post Office parcels exceeding in the aggregate such limits of weight and size as may be agreed between the Company and the Postmaster-General or in default of agreement settled by arbitration :

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(d) Except where the vehicle is in charge of a guard (other than the driver of the vehicle) and except in the case of a vehicle carrying goods the Company shall not be bound to convey any mails unless they are in charge of an officer of the Post Office : A.D. 1906.

(2) The remuneration for any services performed in pursuance of this section shall be such as may be from time to time determined by agreement between the Postmaster-General and the Company or in default of agreement by the Railway and Canal Commission and any question to be settled by arbitration under this section shall be determined by the said Commission :

(3) The expression "mails" has the same meaning as in the Regulation of Railways Act 1873 and the expression "Post Office parcel" means a parcel as defined by the Post Office (Parcels) Act 1882.

5. For the protection of the lord provost magistrates and town council of the city and royal burgh of Aberdeen (in this section referred to as "the Corporation" and "the city" respectively) the following provisions shall unless otherwise agreed upon between the Corporation and the Company apply and have effect (that is to say) :— For protection of Corporation of Aberdeen.

(1) In this section the expression "railway omnibus" shall mean any omnibus coach car or other road vehicle used under the powers of section 3 of this Order for the conveyance of passengers :

(2) The expression "omnibuses or other carriages for the conveyance of passengers" occurring in section 161 of the Aberdeen Municipality Extension Act 1871 shall be deemed to include a railway omnibus and the provisions of that section shall apply thereto accordingly but only within the city :

(3) The Corporation may in writing from time to time prescribe the route within the city to be taken by any railway omnibus between the points of arrival and departure of such railway omnibus :

(4) Except with the consent in writing of the Corporation the Company shall not within the city run any railway omnibus for the conveyance of passengers otherwise

A.D. 1906.

than to or from a station or hotel of the Company including the Aberdeen Joint Passenger Station or take up or set down passengers other than those proceeding to or starting from a point beyond the boundary of the city or those using a railway omnibus specially hired from the Company for the conveyance of passengers between any point within the city and a station or hotel of the Company:

- (5) If the Company consider themselves aggrieved by any decision or refusal of consent of the Corporation with reference to any railway omnibus the Company may apply to the Board of Trade and on any such application the Board of Trade may reverse or vary the decision of the Corporation or may make such other order touching the matter in dispute between the Company and the Corporation as to the Board of Trade shall seem just. The powers of the Board of Trade under this section may if the Board of Trade in any case so determine be exercised by an arbitrator to be appointed by the Board of Trade.

Saving
agreement
between
Company
and Mr. Far-
quharson of
Invercauld.

6. Nothing in this Order shall prejudice or in any way affect the agreement for a lease made between the Company and the commissioner for Mr. Alexander Haldane Farquharson of Invercauld dated the twenty-eighth day of June and the first day of July one thousand nine hundred and four which agreement for lease shall remain in full force and effect.

Additional
lands.

7. The Company may use for the purposes of this Order any lands now held by them and may acquire by agreement and hold other lands not exceeding in the whole twenty acres for the purposes of this Order and for the general purposes of their undertaking but nothing in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so used or acquired.

Company
may apply
funds.

8. The Company may apply towards the purposes of this Order properly chargeable to capital any money which they are already authorised to raise and which may not be required by them for the purposes for which the same was authorised to be raised.

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9. Payment of dividend upon the preferred converted ordinary stock of the Company shall be deemed to be payment of dividend upon the ordinary stock of the Company for the purposes of the Trusts (Scotland) Amendment Act 1884 and the Trustee Act 1893 and any Acts amending the same.

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Dividend on preferred converted ordinary stock for purposes of investments by trustees.

10. Nothing in this Order contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of the Act confirming this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels.

Provision as to general Railway Acts.

11. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the Act confirming the same or otherwise in relation thereto shall be paid by the Company.

Costs of Order.

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